IN THE HIGH COURT OF JUDICATURE AT MADRAS
O.A. NO. 442 OF 2024 IN C.S. NO. 188 OF 2024
INTERIM APPLICATION
(Under Order XXXIX Rules 1 and 2 of the Code of Civil Procedure, 1908)

M/s Coromandel Exports Private Limited,
represented by its Director Shri S. Balasubramanian,
No. 8, Second Line Beach, Chennai - 600001
... Applicant/Plaintiff

Versus

M/s Deccan Shipping Agencies ... Respondent/Defendant

AFFIDAVIT IN SUPPORT OF THE APPLICATION

1. That the Applicant has filed the above suit for permanent injunction and for recovery of Rs. 74,00,000/-.

2. That the Respondent is attempting to dispose of the consignment lying in Warehouse No. 14, Chennai Port, which forms the subject matter of the suit, and to defeat the decree that may be passed.

3. That the Applicant has a strong prima facie case, the balance of convenience is in its favour, and irreparable injury will be caused if the interim relief prayed for is not granted.

4. That the application is made bona fide and in the interest of justice. No prejudice will be caused to the Respondent.

It is therefore prayed that this Hon'ble Court may be pleased to grant an ad-interim injunction restraining the Respondent, its men and agents, from alienating, encumbering or otherwise dealing with the consignment lying in Warehouse No. 14, Chennai Port, pending disposal of the above suit, and to pass such further orders as this Hon'ble Court deems fit.

Chennai
Dated: 19/06/2024

Counsel for the Applicant
Shri R. Venkatachalam, Advocate